

Subject Code	AF5522
Subject Title	Economic Law and System of the PRC
Credit Value	3
Level	5
Normal Duration	1-semester
Pre-requisite / Co-requisite/ Exclusion	None
Objectives	This subject provides students with up-to-date knowledge of Chinese Economic Law and an understanding of China's legal system and the legal environment of business operations in China. It contributes to the achievement of the MCG Programme Outcomes by enabling students to interpret up-to-date knowledge of Chinese Economic Law and the China's legal system and the legal environment of business operations in China, critically appraise the success of law and system in the current business environment which possess significant ethical challenges, and effectively compare the corporate governance systems of both Hong Kong and PRC companies.
Intended Learning Outcomes	On successfully completing this subject, students will be able to: (a) identify and explain the main features of China's legal system; (MCG Programme Outcome 3) (b) critically evaluate China's ongoing legal reform and substantive laws relevant to the country's market-based economic development and "Open Door" policy; and (c) Effectively compare China's legal system with Hong Kong's legal system, and be able to suggest improvements and reform of both the existing legal system and specific substantive laws and to suggest the nature of new laws necessary to fill lacunae in China's existing legal framework.
Subject Synopsis/ Indicative Syllabus	The Chinese Legal System Organs and process of law-making at central and local levels, the court structure, the trial system, legal and judicial personnel and relevant constitutional provisions with comparisons to Hong Kong's legal system as appropriate. A Comparative Overview of the Chinese and Common Law Systems From a comparative perspective, China's legal system and common law jurisdictions such as Hong Kong. Laws Relating to Property Right, Contract, and Functioning of the Market

	Contract law, product and consumer law, anti-unfair competition law, labour law. Laws Relating to Foreign Investment Forms of foreign investment: equity joint ventures, contractual joint ventures, wholly-owned foreign enterprises; the impact of WTO membership on foreign investment in China; establishment procedures; organizational structures; capital contribution and profit distribution; area of business, duration and termination. Law Relating to Domestic Business and Entrepreneurship Law of domestic business organizations: limited liability company and company limited by shares, partnerships; competition law. Legal Aspects of China's Foreign Trade Foreign trade regulation; impact of WTO membership; the opening of China's domestic market. Law Relating to Business Finance China's banking system; banks with foreign investment; raising capital from the stock market; regulation of the financial system; Fintech regulations in China. Ethical issues concerning the maintenance of good corporate governance and ethical standards in capital markets. Intellectual Property Laws Patents, copyrights, trademarks and passing-off, substantive law and enforcement, impact of WTO membership. Ethical and practical issues concerning use of fake or pirated goods and software. Alternative Dispute Resolution Adjudication; mediation; conciliation; arbitration involving foreign parties; arbitration organs and proceedings; enforcement of arbitral awards.
Teaching/Learning Methodology	Lectures will cover the core principles and concepts contained in the subject syllabus. Seminars will be utilised for examination of legal case studies, presentation and discussion. Students are expected to play an active role in seminars and are required to present their opinions on the various topics contained in the syllabus. Students will be given appropriate reading lists but will be required to undertake their own active research via paper based or electronic resources and to share ideas and information.
Assessment Methods in Alignment with Subject Learning Outcomes	Assessment components include legal cases assignments, presentation, discussion and final examination. These assessment components will require students to <u>interpret up-to-date knowledge of Chinese Economic Law and the China's legal system and the legal environment of business operations in China</u> (Programme Outcome 3), <u>critically appraise the success of law and system in the current business environment which possess significant ethical challenges</u> (Programme Outcome 1), and <u>effectively compare the</u>

	corporate governance systems of both Hong Kong and PRC companies (Outcome 6).																																																																				
	<table border="1"> <tr> <th rowspan="2">Specific assessment methods/tasks</th><th rowspan="2">% weighting</th><th colspan="6">Intended subject learning outcomes to be assessed (Please tick as appropriate)</th></tr> <tr> <th>a</th><th>b</th><th>c</th><th></th><th></th><th></th></tr> <tr> <td><u>Continuous Assessment</u></td><td>50%</td><td></td><td></td><td></td><td></td><td></td><td></td></tr> <tr> <td>1. Class participation</td><td>10%</td><td>✓</td><td>✓</td><td>✓</td><td></td><td></td><td></td></tr> <tr> <td>2. Group project</td><td>20%</td><td>✓</td><td>✓</td><td>✓</td><td></td><td></td><td></td></tr> <tr> <td>3. Mid-term test</td><td>20%</td><td>✓</td><td>✓</td><td>✓</td><td></td><td></td><td></td></tr> <tr> <td><u>Final Examination</u></td><td>50%</td><td>✓</td><td>✓</td><td>✓</td><td></td><td></td><td></td></tr> <tr> <td>Total</td><td>100 %</td><td colspan="6"></td></tr> </table> Explanation of the appropriateness of the assessment methods in assessing the intended learning outcomes: The Presentation/Individual essay allows students to critically appraise the success (or failure) of specific areas of law as well as related ethical issues. The Mid-term Test and Final Examination will test students' up-to-date knowledge on and critical understanding of the Chinese economic law. <i>Note: The specific requirements on individual assessment components discussed above could be adjusted based on the pedagogical needs of the subject lecturer(s).</i>							Specific assessment methods/tasks	% weighting	Intended subject learning outcomes to be assessed (Please tick as appropriate)						a	b	c				<u>Continuous Assessment</u>	50%							1. Class participation	10%	✓	✓	✓				2. Group project	20%	✓	✓	✓				3. Mid-term test	20%	✓	✓	✓				<u>Final Examination</u>	50%	✓	✓	✓				Total	100 %						
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Student Study Effort Required	Class contact:																																																																				
	▪ Lectures / Seminars					39 Hrs.																																																															
	Other student study effort:																																																																				
	▪ On average students are expected to spend around 2 more hours for each contact hour for reading and subject materials / textbook, doing discussion questions and assignments.					78 Hrs.																																																															

	Total student study effort	117 Hrs.
Reading List and References	Topic-specific academic journal articles designated by the lecturer.	